

**JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY
UNDER MULTIPLE AWARD CONTRACTS IN ACCORDANCE WITH FEDERAL
ACQUISITION REGULATION (FAR) 16.507**

IDENTIFICATION NUMBER: 89303025AIM000024

For modification to the existing Strategic Marketplace Google Vehicle

1. Identification of the agency and the contracting activity.

The Department of Energy (DOE), Office of Headquarters Procurement Services (MA-64), located in Washington, DC, proposes to issue a modification to Strategic Marketplace No. 89303025AIM000024 by means of other than full and open competition. This action is in support of the Office of the Chief Information Officer (OCIO). This document sets forth the justification and approval for the use of the exception to fair opportunity as authorized under Federal Acquisition Regulation (FAR) 16.507-6(b)(2), "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized," as implemented by DOE class deviation.

2. Nature and/or Description of the Action Being Approved.

This is a modification to Strategic Marketplace vehicle No. 89303025AIM000024, issued under the National Aeronautics and Space Administration's (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V, Strategic (Catalog) Marketplaces. The Strategic Marketplace was originally established to provide Google products and services, as well as other information technology products and services offered by the contractor, Optivor Technologies, LLC, in support of DOE's Office of the Chief Information Officer (OCIO).

DOE intends to modify the current Strategic Marketplace No. 89303025AIM000024 to increase the total estimation to accommodate expanded agency requirements. The current estimated value is set at \$30,000,000. This action will increase the estimated value by \$10,000,000, making the new estimated value to \$40,000,000.

The terms and conditions Section 1.5 of the Strategic Marketplace No. 89303025AIM000024 states, *"The Government estimates, but does not guarantee, the value of the purchases throughout the duration of the Strategic Marketplace will be approximately \$30 million. This amount is an estimated value and not a ceiling amount. The accumulated value of purchases issued under the Strategic Marketplace may exceed this amount without modification to the Strategic Marketplace."*

Based on stated terms and conditions, this justification is technically not required, as the Strategic Marketplace allows purchases to exceed the estimated value without formal

justification. However, DOE is issuing this JEFO as an abundance of caution to formally update the estimated value to \$40,000,000, reflecting the anticipated \$10,000,000 increase in agency requirements.

The increased estimation is necessary to support additional DOE components, including the national laboratories and other headquarters offices, that require access to Google products and services and other IT solutions available through this Strategic Marketplace. The modification will allow for continued streamlined procurement of these critical IT products and services while a determination is made regarding future acquisition strategies.

3. Description of Supplies and/or Services (Including the Estimated Value).

This JEFO authorizes and approves the modification of Strategic Marketplace No. 89303025AIM000024 with Optivor Technologies, LLC to increase the estimation value from \$30,000,000 to \$40,000,000 for the procurement of Google products and services, as well as other information technology commercial products and services. The Strategic Marketplace supports the Office of the Chief Information Officer (OCIO) and other DOE components including national laboratories and headquarters offices.

The Strategic Marketplace was established through NASA SEWP V Strategic (Catalog) Marketplaces, which provides a streamlined acquisition vehicle for information technology. The Strategic Marketplace offering provides pre-defined products, solutions, and services that meet DOE's specific requirements and are available on the SEWP V Contracts.

Products and services available under this Strategic Marketplace include, but are not limited to:

- Google Workspace (formerly G Suite) licenses and services
- Google Cloud Platform services
- Google enterprise security solutions
- Google collaboration and productivity tools
- Other commercial IT products and services offered by Optivor Technologies, LLC through the NASA SEWP V contract vehicle

The increased demand from additional DOE components necessitates an increase in total estimated value to ensure uninterrupted access to these critical IT products and services. The total estimated value of this Strategic Marketplace modification is \$10,000,000, bringing the total estimation to \$40,000,000.

ESTIMATED VALUE:

DESCRIPTION	ESTIMATED VALUE
Original Estimate	\$30,000,000
Increased Value	\$10,000,000
NEW TOTAL ESTIMATION	\$40,000,000

4. Authority and Supporting Rationale.

In accordance with FAR 16.507-6(b)(2), “Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.”

Optivor Technologies, LLC is uniquely qualified as the only responsible source for the increased estimated value under Strategic Marketplace No. 89303025AIM000024. As the incumbent vehicle holder under NASA SEWP V Strategic Marketplace, Optivor has developed comprehensive understanding of DOE's specific IT infrastructure requirements, security protocols, and operational needs across multiple program offices. The contractor has established critical integrations between Google products and DOE's existing IT environment, including authentication systems, security frameworks, and data management protocols that are essential to mission operations. Optivor possesses irreplaceable institutional knowledge of DOE's deployment architecture, user base configurations, license management systems, and technical support requirements that cannot be readily transferred to another contractor without significant risk of service disruption to mission-critical operations.

DOE's operations are heavily dependent on the Google products and services currently being delivered through this Strategic Marketplace, including enterprise-wide email systems, collaboration platforms, cloud storage solutions, and productivity applications that support thousands of DOE employees and contractors across the agency. Any disruption in these services would have immediate and severe impacts on DOE's ability to conduct daily operations, maintain communication channels, support ongoing research activities, and fulfill statutory obligations. The continuity of these critical IT services is paramount to DOE's mission success, and Optivor's established performance and integrated systems ensure uninterrupted service delivery that is essential to the agency's operational effectiveness and national security responsibilities.

Optivor Technologies, LLC maintains specialized partnerships and certifications with Google that enable the provision of enterprise-level products and services with the technical support, security configurations, and service level agreements required by DOE. The contractor has

demonstrated expertise in deploying and supporting Google Workspace and Google Cloud Platform solutions in federal government environments with stringent security and compliance requirements. Also, as an authorized reseller within the NASA SEWP V Strategic Marketplace, Optivior has met all contract holder requirements including TAA compliance and DOE IT security and Cyber Supply Chain Risk Management (C-SCRM) requirements, providing the standardized solutions, streamlined ordering processes, and cost efficiencies that support DOE's mission requirements.

Establishing a new Strategic Marketplace or other comparable vehicle with a different contractor would result in substantial duplication of costs. Additionally, recompeting this requirement would require 9-12 months to complete the acquisition process and system integration. This type of cost and delay is unacceptable given the immediate needs of the agency that require uninterrupted access to Google products and services to support mission-critical operations, research collaboration, and enterprise communication.

The need to increase the estimation is driven by expanded requirements from DOE components that were not originally anticipated at the time of Strategic Marketplace establishment, and these requirements are immediate and cannot wait for a lengthy competition process. Optivior Technologies, LLC is immediately available to provide expanded services under the increased value without the delays, costs, and risks associated with establishing a new acquisition vehicle, and has the capacity, technical capability, and established infrastructure to scale services to meet the increased demand from additional DOE components. For these reasons, Optivior stands as the only responsible source capable of providing continuity of critical IT products and services under the increased value, and award to any other source would result in substantial duplication of costs and unacceptable delays of 9-12 months, during which time DOE's mission operations would be significantly impaired.

5. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined that the anticipated cost to the Government of the supplies and services covered by this JEFO will be fair and reasonable. All products and services provided under this Strategic Marketplace are subject to the pricing terms and conditions of the underlying NASA SEWP V contract, which was awarded through full and open competition and includes pricing determined fair and reasonable through the competitive award process. The NASA SEWP V Strategic Marketplace framework ensures price competitiveness through continuous internal competition within the Marketplace, where pricing for Google products and services is transparent and subject to comparison with other authorized resellers within the SEWP V program.

The Contracting Officer will verify that prices charged under the Strategic Marketplace are consistent with commercial pricing for similar quantities and terms available in the marketplace,

as Google products and services are commercial items with established market pricing. Historical pricing analysis from previous orders placed under Strategic Marketplace No. 89303025AIM000024 demonstrates that Optivor Technologies, LLC has provided competitive pricing throughout the life of the vehicle, and pricing trends will be monitored to ensure consistency. Individual orders placed against the vehicle will be subject to price reasonableness determinations at the order level, including comparison to catalog pricing, volume discounts, and market research as appropriate for the specific products and services being acquired.

The modification avoids substantial costs that would be incurred through competition, including potential duplication costs, and the cost efficiency of maintaining the existing vehicle contributes to the overall reasonableness of this approach. The anticipated cost to the Government for the \$10,000,000 increase will be fair and reasonable based on the competitive foundation of the NASA SEWP V contract vehicle, transparent Strategic Marketplace pricing, commercial market pricing benchmarks, historical pricing analysis, and order-level price reasonableness determinations that will be conducted for each individual purchase in accordance with FAR Part 13 procedures for Strategic Marketplace orders.

Total Estimated Value:

DESCRIPTION	ESTIMATED VALUE
Original Strategic Marketplace Estimation	\$30,000,000
Value Increase (This Action)	\$10,000,000
NEW TOTAL ESTIMATED VALUE	\$40,000,000

The Contracting Officer will ensure that all orders placed against the increased total value are supported by appropriate price analysis and documentation of fair and reasonable pricing determinations for Strategic Marketplace orders.

6. Any other facts supporting the justification.

Market research, in accordance with FAR Part 10, was conducted through the NASA SEWP V Strategic (Catalog) Marketplaces program, which represents a comprehensive market research tool providing visibility into available IT products, services, and suppliers capable of meeting federal agency requirements. The establishment of the original Strategic Marketplace through the NASA SEWP V Marketplace involved market research to identify qualified sources for Google products and services, which confirmed that multiple SEWP V contract holders are authorized Google resellers. Market research also confirms that Google Workspace, Google Cloud Platform, and related Google enterprise products are proprietary commercial items available only through Google-authorized resellers with transparent commercial pricing structures. While multiple authorized Google resellers exist within the federal marketplace, the critical factor for this

modification is the substantial administrative costs to recompetete, delays services by 9-12 months potentially, and operational risks associated with transitioning from the established vehicle to a new contractor.

Market research considered multiple alternatives including recompeteting, establishing individual contracts, and utilizing other existing contract vehicles. Recompeteting would require additional time and will incur duplicated costs with significant risk of service disruption to mission-critical IT systems. Establishing individual contracts would eliminate streamlined ordering benefits, increase administrative burden across multiple DOE components, and result in higher overall costs due to loss of volume pricing. Research identified no other existing DOE contract vehicles that provide the same combination of Google products/services, streamlined ordering, and established integration with DOE's IT infrastructure. Modifying the existing vehicle provides the most cost-effective and operationally sound solution, maintaining continuity of services while accommodating expanded requirements from additional DOE components.

Market research supports the determination that modifying the existing Strategic Marketplace with Optivior Technologies, LLC to increase the total estimated value is the most advantageous approach for the Government. The NASA SEWP V Strategic Marketplace framework ensures that underlying pricing remains competitive and that the contractor meets all technical and security requirements. The unique circumstances of the established vehicle, integrated systems, institutional knowledge, and need for service continuity justify limiting competition for this value increase modification.

7. Actions to Overcome Barriers to Competition.

DOE recognizes the importance of promoting competition in future acquisitions and is committed to taking appropriate actions to facilitate competitive opportunities when feasible and in the Government's best interest. During the period of performance under the modified Strategic Marketplace, DOE will continuously monitor market conditions for Google products and services, track performance metrics including pricing and delivery performance, assess how requirements evolve, evaluate alternative solutions, and document lessons learned to inform future acquisition strategies. DOE plans to initiate acquisition planning for the follow-on requirement. A competitive solicitation for a follow-on contract could be issued approximately 12-15 months from the date of this modification, allowing for a competitive process while ensuring continuity of services.

For future acquisitions of Google products and services or similar IT solutions, DOE will consider competitive approaches including conducting a competitive solicitation for a new Strategic Marketplace through NASA SEWP V (or its successor, SEWP VI if available) or other appropriate contract vehicles, assessing whether a multiple-award BPA structure would be advantageous to allow competition at the order level, and emphasizing performance-based requirements that focus on outcomes rather than incumbent advantages. DOE will engage with

the vendor community through industry days, requests for information, and draft solicitation reviews prior to future competitive solicitations. While the current modification is justified based on the incumbent contractor's established performance and the need for service continuity, DOE is committed to full and open competition as the preferred method of procurement and will compete future requirements unless circumstances justify limiting competition in accordance with the FAR.